

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kathryn Duffy	Team: Team # 1	CCRB Case #: 201015311	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/05/2010 11:30 PM	Location of Incident: 64th Street and 15th Avenue	Precinct: 62	18 Mo. SOL 5/5/2012	EO SOL 5/5/2012	
Date/Time CV Reported Sat, 11/06/2010 5:34 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 11/06/2010 5:34 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Yakov Kaushanskiy	06258	938755	062 PCT
2. POM Marcos Rodriguez	04615	942458	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Marcos Rodriguez	Abuse: PO Marcos Rodriguez searched the car in which § 87(2)(b) was an occupant.	
B.POM Yakov Kaushanskiy	Abuse: PO Yakov Kaushanskiy searched the car in which § 87(2)(b) was an occupant.	
C.POM Marcos Rodriguez	Abuse: PO Marcos Rodriguez searched § 87(2)(b)	
D.POM Yakov Kaushanskiy	Abuse: PO Yakov Kaushanskiy searched § 87(2)(b)	

Case Summary

§ 87(2)(b) made the following complaint of police misconduct over the CCRB call processing system on November 6, 2010. On November 5, 2010, at approximately 11:30 pm, § 87(2)(b)'s car was pulled over by officers identified as PO Yakov Kaushanskiy and PO Marcos Rodriguez, both from the 62nd Precinct, at the intersection of 64th Street and 15th Avenue in Brooklyn. § 87(2)(b) alleged that Officers Kaushanskiy and Rodriguez searched her vehicle and discovered prescription medication that was not in its prescription bottle. They instructed her to get out of the vehicle, searched her person, and placed her under arrest.

The undersigned investigator mailed § 87(2)(b) a contact letter on November 8, 2010, and called her twice between November 9 and November 10, 2010. During these calls § 87(2)(b) provided a brief telephone statement, asked questions about the agency, and scheduled an in-person interview on November 22, 2010. On November 22, 2010, § 87(2)(b) failed to appear for her scheduled interview, and she was mailed a missed appointment letter the same day. The undersigned called and left § 87(2)(b) a voicemail message asking her to confirm whether she still wanted to pursue the complaint on November 24, 2010. The undersigned was then on approved leave through November 29, 2010, and upon her return found no voicemails or other communication from § 87(2)(b). The undersigned called § 87(2)(b) three additional times between November 29, 2010, and December 1, 2010, and heard an automated message each time stating that § 87(2)(b)'s mailbox was full and not accepting messages. However, § 87(2)(b) called the CCRB on November 29, 2010, and left a voicemail message stating that she had received the investigator's call and had spoken to an attorney. She did not indicate whether she wanted to continue with her complaint and made no further contact with the agency despite continued attempts to contact her. The New York City Department of Corrections inmate tracking system shows that § 87(2)(b) is not currently incarcerated in New York City.

§ 87(2)(g)

Team: ____1____

Investigator: _____	_____ Kathryn Duffy _____	_____ 12/01/2010 _____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date